

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA-CGM (AMERICA) LLC, *Respondent*.

DOCKET NO. 18-07

Served: December 20, 2018

BEFORE: Clay G. GUTHRIDGE, *Administrative Law Judge*.

Order Granting Second Joint Motion to Stay Proceedings

On September 5, 2018, the Commission issued a Notice of Filing of Complaint and Assignment (Notice) for this proceeding. The Commission assigned the proceeding to the Office of Administrative Law Judges with instructions to issue an initial decision by September 6, 2019. *Marine Transport Logistics, Inc., v. CMA-CGM (America) LLC*, FMC No. 18-07 (FMC Sept. 5, 2018) (Notice of Filing of Complaint and Assignment). Respondent CMA-CGM (America) LLC filed its answer on September 26, 2018.

On October 25, 2018, the parties filed a joint motion to stay the proceedings to engage in mediation through the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) and requested a stay until they exhaust the potential for settlement. The motion was granted and the proceeding stayed through November 30, 2018. The order granting the stay provides that:

If the parties have not reached a settlement by November 30, 2018, on or before December 14, 2018, the parties must:

- File a joint status report with a proposed schedule that will allow issuance of an initial decision on or before September 6, 2019. *See* Initial Order page 1.
- Serve initial disclosures. *See* Initial Order ¶ 6.

Marine Transport Logistics, Inc., v. CMA-CGM (America) LLC, FMC No. 18-07 (ALJ Oct. 25, 2018) (Order Granting Joint Motion to Stay Proceedings).

On December 14, 2018, the parties filed a joint status report and joint motion for extended stay. The parties state that they are engaged in settlement discussions with CADRS.

The Parties . . . request an Order providing for an in person mediation facilitated by CADRS in the event a successful settlement is not reached on or before January 31, 2019.

For the avoidance of doubt, the Parties understand and agree that the stay requested herein shall be lifted upon unilateral application of either MTL or CMA to Your Honor requesting a lift of the stay. In the event the stay is lifted, the Parties agree the timeline for proceeding in the above-captioned matter shall be extended to provide at . . . least 30 calendar days following the date when the stay is lifted for either Party to submit Initial Disclosures or responses to Discovery.

(Joint Status Report and Joint Motion for Extended Stay at 2.)

The parties' motion will be granted and the stay extended, but not on the conditions requested by the parties.

Commission Rules require that the parties make initial disclosures within seven days of the filing of the answer.

Initial disclosures. Except as otherwise stipulated or ordered by the Commission or presiding officer, and except as provided in this subpart related to disclosure of expert testimony, all parties must, within 7 days of service of a respondent's answer to the complaint or Order of Investigation and Hearing and without awaiting a discovery request, provide to each other:

- (1) The name and, if known, the address and telephone number of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment;
- (2) A copy, or a description by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses, unless the use would be solely for impeachment;
- (3) An estimate of any damages claimed by the disclosing party who must also make available for inspection and copying the documents or other evidentiary material, unless privileged or protected from disclosure, on which the estimate is based, including materials bearing on the nature and extent of injuries suffered.

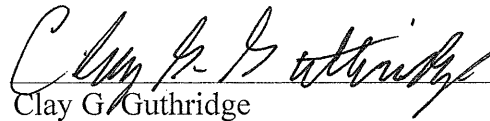
46 C.F.R. § 502.141(b). In the event settlement discussions are unsuccessful, the parties ask that they be allowed at least thirty days following the date a stay is lifted to submit initial disclosures.

The parties have been unsuccessfully engaged in settlement discussions for nearly two months. It is likely that the information required by the Commission's initial disclosure rule has already been disclosed. Therefore, an additional thirty days after the end of unsuccessful settlement discussions to make the initial disclosures is not necessary. If the information has not already been disclosed, it may be that disclosing the information will facilitate the settlement discussions. Therefore, the parties are hereby

ORDERED to provide the information required by Rule 141(b). Mindful of the time of year and the likelihood that counsel have planned to take vacation time, the parties are ordered to provide initial disclosures on or before January 9, 2019.

The parties ask that the proceeding be stayed to January 31, 2019, with a provision that if they have not settled by that date, the proceeding be further stayed to permit “in person mediation facilitated by CADRS.” (*Id.*) If the parties believe that in person mediation facilitated by CADRS would be more likely to achieve settlement than continuing the process that they have used until this point, the parties should schedule the in person mediation for the second half of January 2019, not spend another six weeks without meeting in person. Therefore, it is hereby

ORDERED that the Joint Motion for Extended Stay be **GRANTED**. If the parties have not reached a settlement by January 31, 2019, on or before February 15, 2019, the parties must file a joint status report with a proposed schedule that will allow issuance of an initial decision on or before September 6, 2019. *See* Initial Order page 1. If the parties are not able to schedule the in person mediation session with CADRS before January 31, 2019, the parties may schedule the session for a date after January 31, 2019, but must still comply with the order to submit the proposed schedule on or before February 15, 2019.


Clay G. Guthridge
Administrative Law Judge